

BEFORE THE  
FEDERAL MARITIME COMMISSION

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DOCKET NO. 24-17

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SAMSUNG ELECTRONICS AMERICA, INC.,

*Complainant,*

v.

ORIENT OVERSEAS CONTAINER LINE, LIMITED AND

OOCL (EUROPE) LTD.

*Respondents*

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**MOTION TO DISMISS THE AMENDED COMPLAINT  
WITH PREJUDICE**

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Subject to the Presiding Officer's Order granting the Joint Motion for Approval and Confidential Treatment of Settlement Agreement and Release, Doc. No. 142, and in accordance with 46 C.F.R. § 502.72(a)(3) and 502.254(f)(2), Samsung Electronics America, Inc. ("SEA") hereby moves to dismiss the above-captioned matter with prejudice, inclusive of its Appeal of the Order Denying its Petition for Attorney Fees, pursuant to the terms of the Parties' Confidential Settlement Agreement.

The Parties reached a Confidential Settlement Agreement and Release, which was submitted to the Presiding Officer in support of the Joint Motion for Approval and Confidential Treatment on July 20, 2026. Under the terms of the Settlement Agreement, SEA agreed to

dismiss its Amended Complaint and withdraw its Appeal of the Order Denying its Petition for Attorney Fees upon receipt of the agreed settlement funds, which SEA has now received.

Accordingly, SEA respectfully requests that the Amended Complaint and its Appeal of the Order Denying its Petition for Attorney Fees be dismissed with prejudice.

Dated: August 17, 2026

Respectfully Submitted,

**MILLS BLACK LLP**

By: /s/ **Peter F. Black**

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*Counsel to Complainant, Samsung  
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## **CERTIFICATE OF SERVICE**

I hereby certify that I have this day served the foregoing document by electronic mail upon the following persons/addresses:

1. Office of the Secretary  
Federal Maritime Commission  
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2. Hon. Richard Ambrow - *Administrative Law Judge*  
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Dated: August 17, 2026

By: /s/ Peter F. Black